

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUOR042037: EDDIE DELOMPREY, et al. vs PHH MORTGAGE SERVCING, et al.
09/08/2026 in Department 42
Demurrer**

Motion: Defendants’ Demurrer to Plaintiff’s First Amended Complaint (*Opposed*)

Tentative Ruling:

Defendants’ Demurrer to Plaintiff’s First Amended Complaint is ORDERED OFF CALENDAR without prejudice.

The Demurrer is expressly directed to a First Amended Complaint (“FAC”) that Defendants identify as having been filed December 9, 2025, while this action was pending in federal court. Defendants demur to that FAC and the causes of action alleged therein. Plaintiff’s Opposition likewise addresses the merits of that FAC.

At the August 19, 2026 hearing, however, the Court identified a threshold problem concerning the operative pleading. The original Complaint was filed in this Court in April 2025. Although Plaintiff subsequently filed a FAC in federal court before the action was remanded, that FAC was only file-stamped “received” by the Ventura County Superior Court on June 5, 2026. On the same date, the Court also received a Second Amended Complaint (“SAC”). Neither amended complaint was filed in this Court.

The Court therefore continued the Demurrer and ordered an amended complaint to be filed and served no later than September 8, 2026.

The pending Demurrer is not directed to a filed operative pleading in this action. A demurrer tests the sufficiency of the operative pleading before the Court. Moreover, it is the filing of an amended complaint that supersedes the preceding complaint. (See *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1130-1131 [“The filing of the FAC” rendered the motion directed to the prior complaint moot; an amended complaint, once filed, supersedes the prior complaint].)

The Court does not reach the merits of Defendants’ Demurrer or Plaintiff’s substantive Opposition. The Demurrer is ordered off calendar without prejudice to Defendants filing an appropriate responsive pleading directed to the operative complaint.

The concurrently filed Request for Judicial Notice is likewise off calendar because the Court does not reach the merits of the Demurrer.

Defendants to give notice.